TITLE COMMITMENT

Indigo Student Living | Louisville, KY

Commitment No.	TC-11111111
Property	Indigo Student Living, 929 Commerce Court, Louisville, KY 40196
Proposed Insured	Granite Lane Realty
Effective Date	July 29, 2022

1. Schedule A - Commitment. Effective Date: July 29, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Granite Lane Realty. Amount of Insurance: $55,750,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of KY. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Midlands Property Trust. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of KY. Time is of the essence with respect to each and every provision of this instrument.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Midlands Property Trust to Granite Lane Realty. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 4, Page 4, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 343434, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of KY. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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Disclaimer and Confidentiality

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